

26STCV02831 26STCV02831

County: los-angeles

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Case Number: 26STCV02831 Hearing Date: August 5, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

RYAN

FOLEY, et al.,

Plaintiff,

vs.

PABLO

M. SOTO, et al.,

Defendants.

Case No.:

26STCV02831

Hearing

Date:

August 5,

ORDER
SUSTAINING DEMURRER TO FIRST AMENDED
CROSS-COMPLAINT

I. BACKGROUND

Plaintiffs Ryan Foley ("Foley"), Thea Ceclia Martin ("Martin"), Katherine Joy Robinson ("Robinson"), Gillian Kay Rochkind ("Rochkind"), and Marissa Estela Solorzano ("Solorzano") worked as hair stylists at Defendant Pablo Soto Hair LLC dba Rock Paper Salon ("RPS"), managed by Defendant Pablo M. Soto ("Soto"). Soto allegedly placed various limitations on Plaintiffs to restrict their financial autonomy and freedom to provide services as preferred, and also required Plaintiffs perform various duties beyond their styling roles. When Foley raised concerns about the working conditions, Soto allegedly terminated his contract. Plaintiffs sued Defendants for fourteen causes of action, including failure to pay wages and unlawful retaliation.

On May 14, 2026, Defendants filed the First Amended Cross-Complaint ("FACC") against Plaintiffs and Cross-Defendants Ryan Foley LLC ("RF") and Kat Hairs L.L.C. ("KH") for seven causes of action, including failure to pay minimum wage. Defendants' Cross-Complaint alleges Soto performed various duties at the direction and for the benefit of Cross-Defendants without proper compensation.

On June 24, 2026, Cross-Defendants filed the instant demurrer to the second through seventh causes of action to the FACC. Defendants filed an opposition. Cross-Defendants filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10[1] states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of

action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Cross-Defendants demur to the second through seventh causes of action for failure to state sufficient facts to establish the causes of action.

A. Employment Status

Cross-Defendants first demurer to the second through fifth causes of action for failure to pay minimum

wage, failure to provide waiting time penalties, and failure to provide accurate and itemized wage statements, as Defendants have not adequately pled facts to allege Cross-Defendants employed Defendants.

Three of the four relevant causes of action are pled under the Labor Code. (See Labor Code §§ 1194, 1197, 203, 218.6., 226, subd. (a).) These three causes of action only allow an employee to recover for alleged wrongdoing by their employer. Therefore, a requisite condition to pleading any causes of action under the relevant Labor Code sections is alleging facts in support of an employment relationship between Cross-Defendants and Defendants.

Pursuant to the Labor Code, an employer is a person or entity which employs any person or persons to perform services for a wage or salary. (Labor Code § 1132.2.) A person employs another through three alternative means: 1) by exerting control over the wages, hours or working conditions of another person; 2) to suffer or permit to work; or 3) to engage another person, creating a common law employment relationship (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) To establish a party 'suffered' or 'permitted' work, said party must have the power to either cause or prevent another from working under some sort of employment structure. (*Futrell v. Payday California, Inc.* (2010) 190 Cal.App.4th 1419, 1429.) A common law employment relationship generally evaluates whether the alleged employer had 'control of details,' such as tools, place of business, length of time, method of payment, and supervision. (*Ibid.*)

Here, Defendants have not pled sufficient facts to establish any relationship in which Cross-Defendants employed Defendants. Defendants allege Soto was an employee of Cross-Defendants because he rendered various services to Cross-Defendants in support of Cross-Defendants' businesses, pursuant to Cross-Defendants' directions and requirements. (FACC ¶¶ 18, 27.) However, Defendants do not allege that Soto undertook these tasks for a wage or salary. Absent an agreement for Soto to perform these tasks in return for wage or salary, there are insufficient facts to establish any sort of employment relationship between Soto and Cross-Defendants. The mere allegation someone undertook tasks for another's benefit or at another's direction does not establish an employment relationship under any legal understanding.

Defendants' cause of action for failure to pay minimum wage pursuant to Los Angeles Municipal Code ("LAMC") similarly is subject to

demurrer. As outlined in LAMC section 187.01, the code only applies to employees and employers, as defined in the Labor Code. As Defendants have insufficiently pled Defendants status as employees of Cross-Defendants as employers, Defendants have also failed to adequately plead this cause of action.

Finally, the seventh cause of action for violations of Business and Professions Code section 17200 also fails, as it is entirely based upon alleged unfair business practices stemming from the alleged employment relationship. "By the conduct alleged above, CROSS-DEFENDANTS have engaged and continue to engage in a business practice that violates California law, including but not limited to California Labor Code sections 203, 226, and 1197...[furthermore] CROSS-DEFENDANTS' failure to produce wage statements deceives and defrauds employees regarding how and what they will be paid...[which] is, by definition, an unfair business practice." (FACC ¶¶ 75-77.) The complaint contains no allegations of unfair business practices. As Defendants failed to plead sufficient facts to allege an employment relationship, Defendants have failed to plead sufficient facts to allege this cause of action.

Defendants have failed to plead sufficient facts to allege the second through fifth, as well as seventh, causes of action. Therefore, the Court sustains the demurrer to these causes of action.

B. Quantum

Merit

Cross-Defendants next demur to the sixth cause of action for quantum merit as insufficiently pled. "To recover on a claim for the reasonable value of services under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for services from the defendant and that the services rendered were intended to and did benefit the defendant." (Ochs v. PacifiCare of California (2004) 115 Cal.App.4th 782, 794.) A party need not prove the existence of a contract but must show circumstances establishing an understanding or expectations of both parties that compensation was to be provided. (Huskinson & Brown v. Wolf (2004) 32 Cal.4th 453, 458.)

The FACC does not adequately plead facts establishing an understanding by Cross-Defendants that they were to provide compensation for Defendants' services. Although Defendants plead "Soto's services were not

provided gratuitously,” and Cross-Defendants knowingly “accepted the benefit of Soto’s services,” no facts allege Cross-Defendants were aware and accepted Soto providing services in return for compensation. (FACC ¶¶ 68-69.) Absent allegations establishing potential understanding, the Court finds this action is insufficiently pled to present a viable cause of action.

The Court sustains the demurrer in full. The Court does not address the issues of the statute of limitations, as the Court sustained the demurrer to those causes of actions on other grounds.

C. Leave
to Amend

The burden is on the pleading party to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Defendants request leave to amend, in part, on the basis that he can provide additional facts regarding Cross-Defendants’ control over Soto and Soto’s rate of pay. As further allegations may be sufficient to cure the defects warranting sustaining of this demurrer, the Court grants leave to amend.

IV. CONCLUSION

Cross-Defendants’ demurrer to the FACC is SUSTAINED, with 30 days leave to amend.

Cross-Defendants are ordered to give notice.

DATED:
August 5, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE
TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.